

23STCV04240 23STCV04240

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Case Number: 23STCV04240 Hearing Date: July 27, 2026 Dept: 300

CASE NUMBER: 23STCV04240

CASE NAME: Courtney Poulos vs. Framework Construction
and Remodeling, Inc., et al.

TYPE OF MOTION: Motion to Strike

FILING PARTY: Plaintiff Courtney Poulos

RESPONDING

PARTY: Unopposed

HEARING DATE: July 27, 2026

Case Background

Plaintiff hired the Defendants to perform extensive construction work in her back yard, including the installation of a pool and barbecue. Plaintiff alleges that there were issues with the Defendant's licensing status, and that their project manager absconded with her payments without doing any actual work.

On February 27, 2023, Plaintiff Courtney Poulos (Plaintiff) filed a complaint against Defendants Framework Construction, Inc. (Framework), Regev Cohen (Cohen), Snir Amrusi (Amrusi) and DOES 1 through 100.

On April 4, 2023, Plaintiff filed a first amended complaint (FAC) against Framework, Cohen, Amrusi, Marilyn Elizabeth Alcantara

(Alcantara), Amos Ezrachi (Ezrachi) (collectively, Defendants) and DOES 1 through 100.

On November 6, 2023, Plaintiff filed second amended complaint (SAC) against Defendants and DOES 1 through 100.

On March 15, 2024, Plaintiff filed a third amended complaint (TAC) against Defendants and DOES 1 through 100 asserting causes of action for: (1) Breach of Contract; (2) Negligence; (3) Fraud; (4) Unjust Enrichment; (5) Common Count; (6) Conversion; (7) Intentional Interference with Contractual Relations; (8) Negligent Interference with Prospective Economic Relations; and (9) Intentional Interference with Prospective Economic Relations.

On October 28, 2024, Framework, Cohen, and Alcantara filed an answer.

On June 16, 2025, Framework filed a substitution of attorney indicating that it was representing itself.

On July 6, 2026, Plaintiff filed the instant motion to strike. The motion is unopposed.

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Instant Pleading

Plaintiff moves the Court, pursuant to Code of Civil Procedure section 435-437, for an order striking the answer of Defendant Framework Construction and Remodeling, Inc.

Decision

The motion is DENIED.

Discussion

Plaintiff moves the Court, pursuant to Code of Civil Procedure section 435-437, for an order striking the answer of Defendant Framework Construction and Remodeling, Inc. on the grounds that Framework, a

corporate defendant, remains unrepresented by counsel.

"[U]nder a long-standing common law rule of procedure, a corporation, unlike a natural person, cannot represent itself before courts of record in propria persona, nor can [a corporation] represent itself through a corporate officer, director, or other employee who is not an attorney. It must be represented by licensed counsel in proceedings before courts of record." (CLD Construction, Inc. v. City of San Ramon (2004) 120 Cal.App.4th 1141, 1145.) This rule applies to all court proceedings except small claims court. (Thomas G. Ferruzzo, Inc. v. Superior Court (1980) 104 Cal.App.3d 501, 503.) "If the corporate agent who would likely appear on behalf of the corporation in a court proceeding, e.g., an officer or director, is not an attorney, that person would be engaged in the unlicensed practice of law. [Citation.]" (CLD, supra, 120 Cal.App.4th at 1146.) California Business and Professions Code section 6125 states that "[n]o person shall practice law in California unless the person is an active licensee to the State Bar." (Cal. Bus. & Prof. Code, § 6125.)

Here, the fact that Defendant Framework Construction and Remodeling, Inc. is now unrepresented does not render its answer, which was filed while it was represented by counsel, defective on its face, rather, it makes Defendant's continued participation in litigation improper. A corporation's lack of representation is a curable defect rather than a jurisdictional nullity that voids an answer. (See CLD, supra, (2004) 120 Cal.App.4th at 1149 ["it is more appropriate and just to treat a corporation's failure to be represented by an attorney as a defect that may be corrected"].) Thus, Defendant Framework Construction and Remodeling, Inc.'s answer does not fall within the ambit of Code of Civil Procedure section 436. (See Ferraro v. Camarlinghi (2008) 161 Cal.App.4th 509, 528 [stating that Code of Civil Procedure section 436(b) authorizes "the striking of a pleading due to improprieties in its form or in the procedures pursuant to which it was filed."].)

Accordingly, the motion is DENIED.

Conclusion

Based on the foregoing, the motion is DENIED.